

(20)

Tentative Ruling

Re: ***In re Deandre Hill Jr***
Superior Court Case No. 26CU02278

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny the petition, without prejudice. Petitioner must file an amended petition, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

The petition at issue is denied without prejudice due to the following deficiencies.

First, there is no indication whether the settlement is paid by insurance, and if so, the policy limits.

Second, the petition fails to provide a report of the minor's current condition. Paragraph 8 of the petition states, "An original or a photocopy of any doctor's report containing a diagnosis of the claimant's injuries or a prognosis for the claimant's recovery, and a report of the claimant's current condition, must be attached to this petition as Attachment 8. A new report is not necessary if a previous report accurately describes the claimant's current condition." The petition must contain full disclosure of all information that has any bearing on the reasonableness of the settlement. (Cal. Rules of Court, rule 7.950.) Given that the medical records show that the minor was still experiencing pain months after the accident, petitioner shall provide a doctor's report of the her present condition.

Third, counsel provides a declaration supporting the request for attorney fees, but the declaration is exceptionally vague and generic, providing no actual information other than the amount of attorney fees requested. (See Attach. 13a.) Moreover, the retainer agreement provides attorney fees would be divided as follows: 19% percent to Sky Legal, APC; and 81% percent to BD&J, PC. It is unclear if counsel intends to split fees in this manner, and whether Sky Legal performed any legal services on behalf of the minor.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***In Re: Steven Antonio Kuripeth***
Superior Court Case No. 25CECG00040

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To take off calendar.

Explanation:

On July 15, 2026, Petitioner's motion to consolidate cases for all purposes for Case Nos. 25CECG00038, 25CECG00039, 25CECG00040, and 25CECG00041, with Case No. 25CECG00038 being designated as the master file was granted. Rules of Court, rule 3.350 (c) requires that after a motion to consolidate has been granted that "for all purposes including trial, any subsequent document must be filed only in the lead case." Petitioner is required to file the petition and all other future documents related to Case No. 25CECG00040 in the master file, which is Case No. 25CECG00038. As the petition was filed in the wrong case after consolidation, the matter is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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